

through the mediation privilege.

Finally, the specific portions of the FAC at issue are not numbered as required (Cal. Rules of Court, rule 3.1322 requires them to be “numbered consecutively”) and the list of the items subject to the motion contains several errors that make it difficult to determine what is being targeted. To name a couple of examples, the line numbering is wrong as to the purported contents of paragraph 54 and the quoted text does not exist in paragraph 78. Other items are overbroad. For example, the targeted statement in paragraph 98 alleges “plaintiff had no choice but to vacate due to defendants’ harassment [...]” and that statement has nothing to do with mediation.

The Court declines to strike the targeted portions of the FAC.

11. 9:00 AM CASE NUMBER: C26-00187
CASE NAME: SEBRION MCHENRY-STEWART VS. JESSE GILLESPIE
HEARING IN RE: MOTION AUTHORIZING SERVICE ALTERNATIVE
FILED BY:

TENTATIVE RULING:

On April 21, 2026, plaintiff Sebrion Mchenry-Stewart (“Plaintiff”) filed a motion for leave to serve defendants Jesse Gillespie and Regional Protection Agency Services Inc. (“Defendants”) by email as an alternative method of service (the “April 2026 Motion for Leave to Serve by Email”). The April 2026 Motion for Leave to Serve by Email was set for hearing on June 29, 2026.

Background

Plaintiff filed this action on January 20, 2026. The Petition seeks monetary damage and enforcement of a Decision of the Labor Commissioner of the State of California in Plaintiff’s favor dated December 18, 2025 (the “Decision”).

Plaintiff previously filed a motion for leave to serve Defendants by email on February 19, 2026 (the “February 2026 Motion for Leave to Serve by Email”). That prior motion was heard on June 29, 2026 and denied.

This motion was filed while the prior motion was still pending. It is not clear to the Court why this April 2026 Motion for Leave to Serve by Email was filed when the February 2026 Motion for Leave to Serve by Email was still pending and had a hearing date in June 2026.

Despite the apparent procedural irregularities, the Court has considered this separate motion.

Analysis

Plaintiff references Code of Civil Procedure section 415.20. That section provides for what is often described as “substitute service.” Substitute service on a defendant at their place of residence requires a three-step process (1) leave a copy of the summons and complaint at the defendant’s dwelling; (2) with a “competent member of the household,” and (3) thereafter mailing a copy to the defendant at the place where the copies were left. Code Civ. Proc 415.20(b); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 4:206.

Leave of the Court is not required before a party resorts to substitute service to serve a party.

In any event, Section 415.20 does not apply to what Plaintiff is seeking, i.e. permission to serve the Defendants by email.

Although no applicable authority is cited by Plaintiff, the Court will presume that the application is brought pursuant to Code of Civil Procedure section 413.30. See Code Civ. Proc. § 413.30(a)(1) (“...if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court.”).

Plaintiff has not properly submitted evidence in support of the present motion establishing that despite reasonable diligence, Plaintiff has been unable to effect service of the summons by any of the methods authorized under the Code of Civil Procedure.

A declaration filed April 21, 2026 by Plaintiff describes an email address identified through a “skip trace” search and attaches a copy of the search results. No other proper declaration was filed in connection with the motion.

Plaintiff did not file a declaration under penalty of perjury setting out all of the efforts to effect service of process on Defendants. For that reason alone, the motion is defective.

Even if the Court were to consider the unsworn statements by Plaintiff in the motion brief and consider several returns of non-service filed on the docket months after the motion papers, in June 2026, the showing is still inadequate.

As best as the Court can glean, an address for defendant Jesse Gillespie was identified in Las Vegas, Nevada (3922 Jacob Lake Cir, Las Vegas, NV 89118-4436) (the “Las Vegas Address”). The returns of non-service filed in June 2026 by a process server shows three attempts on two days (3/18/2026 and 3/28/2026) at the Las Vegas Address. The process server reported indicia that defendant Jesse Gillespie was not a resident at that location.

There is no further showing regarding efforts to serve defendant Jesse Gillespie, including at his place of business. There is no showing as to any publicly available information about any currently operating location for named defendant Regional Protection Agency Services Inc. or efforts to serve the Defendants there. For example, does the business have a website or other online presence from which it may gleaned where it operates in California?

Plaintiff simply states “Plaintiff also attempted service on REGIONAL PROTECTION AGENCY, LLC, including its last known business and registered agent address.” That says nothing about what the “last known business” and “registered agent address” are, nor how many attempts were made or by whom. No declaration by any process server attempting service at any such locations was proffered in support of the motion.

The Court does not find any basis to order service of process on either of the Defendants by email.

Lastly, as noted previously, it is not clear to the Court why this suit is being pursued if the Labor Commissioner may initiate the appropriate process to confirm a court judgment based on its Decision.

Disposition

The Court finds and orders as follows:

1. The April 2026 Motion for Leave to Serve by Email is **DENIED**.
2. The Court shall issue the order after hearing.

12. 9:00 AM CASE NUMBER: C26-00384

CASE NAME: MATHIEU CASSAGNE VS. FCA US LLC

*MOTION/PETITION TO COMPEL ARBITRATION

FILED BY: FCA US LLC

TENTATIVE RULING:

Introduction

Before the Court is Defendant FCA US LLC's ("FCA" or "Defendant") motion to compel arbitration and stay this action. The Motion relates to Plaintiffs' Complaint for two causes of action breach of express and implied warranties under the Song-Beverly Consumer Warranty Act filed on February 3, 2026.

For the reasons explained below, Defendant's motion to compel arbitration is **GRANTED**.

Legal Standard for Motions to Compel Arbitration

A motion to compel arbitration "is in essence a suit in equity to compel specific performance of a contract." (*Cal. Teachers Ass'n v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399, citation omitted.) "A party who files a motion to compel arbitration 'bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.'" (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580 quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) Whether or not the arbitration clause is governed by federal law, the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.)

In California, "[a] strong public policy favors the arbitration of disputes, and doubts should be resolved in favor of deferring to arbitration proceedings." (*Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1404-1405 [citation omitted].) "A trial court is required to order a dispute to arbitration when the party seeking to compel arbitration proves the existence of a valid arbitration agreement covering the dispute." (*Id.* [citation omitted]; Cal. Civ. Code Proc. § 1281.2.) As a result of this public policy, "a heavy presumption weighs the scales in favor of arbitrability..." (*Cione v. Foresters Equity Servs., Inc.* (1997) 58 Cal.App.4th 625, 642 [citation omitted].)

Evidentiary Objections

Plaintiff's Objections

- 1) OVERRULED.
- 2) OVERRULED.
- 3) OVERRULED.
- 4) OVERRULED.
- 5) OVERRULED.